cmyk: 1 (red) over (blue) 1 (blue)

PD-0366-17

PD-0366-17
COURT OF CRIMINAL APPEALS
AUSTIN, TEXAS
Transmitted 4/20/2017 11:28:03 AM
Accepted 4/20/2017 4:14:01 PM
ABEL ACOSTA
CLERK

No. _____

IN THE COURT OF CRIMINAL APPEALS OF TEXAS
TO THE COURT OF CRIMINAL APPEALS

OF THE STATE OF TEXAS
No. PD-0366-17

SAMUEL UKWUACHU, **Samuel Ukwuachu, Appellant** APPELLANT

v. v.

THE STATE OF TEXAS, **The State of Texas, Appellee** APPELLEE

Appeal from McLennan County
Appeal from McLennan County

* * * * *

STATE'S PETITION FOR DISCRETIONARY REVIEW

STATE'S PETITION FOR DISCRETIONARY REVIEW

* * * * *

The State of Texas

Sterling Harmon
ABELINO "ABEL" REYNA
Chief Appellate Assistant Criminal District Attorney
Criminal District Attorney
McLennan County District Attorney's Office
Bar I.D. No. 24000087
219 N. 6th Street, Suite 200, Waco, Texas 76701
Sterling.Harmon@co.mclennan.tx.us
STERLING HARMON
254/757-5084 (Telephone) | 254/757-5021 (Fax)
Chief Appellate Assistant Criminal District Attorney
Bar I.D. No. 09019700

219 N. 6th Street Suite 200
Waco, Texas 76701
Sterling.Harmon@co.mclennan.tx.us
254/757-5084 (Telephone)
254/757-5021 (Fax)

April 20, 2017

FILED IN
COURT OF CRIMINAL APPEALS

April 20, 2017

ABEL ACOSTA, CLERK

NAMES OF ALL PARTIES TO THE TRIAL COURT'S JUDGMENT

NAMES OF ALL PARTIES TO THE TRIAL COURT'S JUDGMENT

*The parties to the trial court's judgment are the State of Texas and Appellant, Samuel Ukwuachu.

The parties to the trial court's judgment are the State of Texas and Appellant, Samuel Ukwuachu.

*The case was tried before the Honorable Matt Johnson, 54th District Court, McLennan County, Texas.

The case was tried before the Honorable Matt Johnson, 54th District Court, McLennan County, Texas.

*Counsel for Appellant at trial was Jonathon P. Sibley, 801 Washington Avenue, Suite 300, Waco, Texas 76710.

Counsel for Appellant at trial was Jonathon P. Sibley, 801 Washington Avenue, Suite 300, Waco, Texas 76710.

*Counsel for Appellant on appeal was William A. Bratton, III, 2828 Routh Street, Suite 675, Dallas, Texas 75201.

Counsel for Appellant on appeal was William A. Bratton, III, 2828 Routh Street, Suite 675, Dallas, Texas 75201.

*Counsel for the State at trial were Hilary LaBorde and Robert Moody, Assistant Criminal District Attorneys, 219 North 6th Street, Suite 200, Waco, Texas 76701.

Counsel for the State at trial were Hilary LaBorde and Robert Moody, Assistant Criminal District Attorneys, 219 North 6th Street, Suite 200, Waco, Texas 76701.

*Counsel for the State on appeal and before this Court is Sterling Harmon, Chief Appellate Assistant Criminal District Attorney, 219 North 6th Street, Suite 200, Waco, Texas 76701.

Counsel for the State on appeal and before this Court is Sterling Harmon, Chief Appellate Assistant Criminal District Attorney, 219 North 6th Street, Suite 200, Waco, Texas 76701.

TABLE OF CONTENTS

Names of All Parties to the Trial Court's Judgment 1

Table of Contents 2

Index of Authorities 4

Statement Regarding Oral Argument 5

Statement of the Case 5

Statement of Procedural History 6

Grounds for Review 7

Factual Overview 7

Argument and Authorities: Issue One 13

Prayer for Relief 22

Certificate of Compliance 22

Certificate of Service 23

INDEX OF AUTHORITIES

State Cases

Burks v. State, 40 S.W.3d 698 (Tex. App. – Waco 2001, *pet. ref'd*) 15

Chamberlain v. State, 998 S.W.2d 230 (Tex. Crim. App. 1999) 21

De la Paz v. State, 279 S.W.3d 336 (Tex. Crim. App. 2009) 16

Ford v. State, 305 S.W.3d 530 (Tex. Crim. App. 2009) 15

Johnson v. State, 967 S.W.2d 410 (Tex. Crim. App. 1998) 21

LaPoint v. State, 225 S.W.3d 513 (Tex. Crim. App. 2007) 20

Motilla v. State, 78 S.W.3d 352 (Tex. Crim. App. 2002) 21

Robisheaux v. State, 483 S.W.3d 205 (Tex. App.—Austin 2016, *pet. ref'd*) 13

Tillman v. State, 354 S.W.3d 425 (Tex. Crim. App. 2011) 16

Ukwuachu v. State, 10-15-00376-CR, 2017 WL 1101284 (Tex. App.—Waco Mar. 22, 2017) 6

Walters v. State, 247 S.W.3d 204 (Tex. Crim. App. 2007) 20

State Rules

Tex. R. App. P. 44.2 18

Tex. R. Evid. 107 ..... passim

Tex. R. Evid. 412 ..... passim

STATEMENT REGARDING ORAL ARGUMENT

The State requests oral argument. The State is asking this Court to decide an important issue regarding the scope of the Texas "Rape Shield" law as expressed

STATEMENT REGARDING ORAL ARGUMENT

The State requests oral argument. The State is asking this Court to decide an important issue regarding the scope of the Texas "Rape Shield" law as expressed under Rule of Evidence 412, and its interplay with other rules of evidence. Namely, the purpose of Rule 412 as a rule of exclusion designed to protect victims of sexual assault has been called into question by the opinion of the court below. Determination of this case will require consideration of competing evidentiary doctrines and the proper balance to be struck between them. Discussion will help to clarify these matters and resolve the issues presented.

STATEMENT OF THE CASE

Appellant pleaded not guilty to the offense of Sexual Assault. He was found guilty at jury trial and sentenced to probation. Appellant presented six points of error on appeal to the 10th Court of Appeals. The court of appeals first overruled Appellant's complaint as to the sufficiency of the indictment, as a finding for Appellant on that point would have afforded greater relief than his other points of error. The court of appeals then found that the trial court had erred in refusing to admit text messages under Rules of Evidence 412 and 107. The court of appeals reversed the conviction and remanded the case for a new trial.

STATEMENT OF PROCEDURAL HISTORY

On March 22, 2017, the court of appeals reversed appellant's conviction in an unpublished opinion and remanded for a new trial. *Ukwuachu v. State*, 10-15-00376-CR, 2017 WL 1101284 (Tex. App.—Waco Mar. 22, 2017). No motion for rehearing was filed. The State's petition is due on April 21, 2017.

GROUNDS FOR REVIEW

1. **The court of appeals misapplied the standard of review for admission of evidence under Rule 412 and 107 in a manner that so far departed from the accepted and usual course of judicial proceedings as to call for an exercise of the Court of Criminal Appeals' power of supervision.**

2. **The court of appeals' failure to conduct a proper harm analysis so far departed from the accepted and usual course of judicial proceedings as to call for an exercise of the Court of Criminal Appeals' power of supervision.**

FACTUAL OVERVIEW

Appellant was indicted for Sexual Assault. (CR I – 7-8). Appellant's opening statement presented the defensive theory of consent. (RR V – 13).

The Complainant had called her friend Brittani, asking to be picked up from Appellant's apartment. (RR V – 26). Complainant appeared to be upset, and she reported that Appellant had raped her. (RR V – 28, 30).

Dr. Cheryl Wooten was a clinical psychologist who had counseled Complainant after the sexual assault. (RR V – 90, 95). Complainant exhibited symptoms warranting a PTSD diagnosis. (RR V – 96). Complainant had remained remarkably consistent in recounting details of the sexual assault.

The first time Complainant spent time with Appellant, he had "tried to do stuff," but Complainant had made it clear to him, through text messages and in person, that "that would not happen again." (RR V – 130). The first time

The first time Complainant spent time with Appellant, he had "tried to do stuff," but Complainant had made it clear to him, through text messages and in person, that "that would not happen again." (RR V – 130). The first time Complainant went to Appellant's apartment, his roommate Peni Tagive was there. (RR V – 132-133). The second time Complainant went to Appellant's apartment, she had spent the night, sleeping in Appellant's bed. (RR V – 143). Nothing had happened with Appellant on that occasion, not even kissing. (RR V – 143).

On the morning of October 20th, Complainant had been at a homecoming party and returned to her apartment. (RR V – 146). Complainant saw Appellant at the party, who told her to call him when she got home. (RR V – 149). After they arrived at Appellant's apartment, Complainant was sitting on the edge of Appellant's bed. (RR V – 154). Appellant came and sat next to her and started getting "touchy and kind of feely." (RR V – 154). Complainant was trying to text her friend Celine Antwi, and Appellant started making more moves. (RR V – 155). Complainant described the escalation of Appellant's advances, culminating in the sexual assault. (RR V – 155-158). While this was happening, Complainant was saying, "No." (RR V – 159). She left Appellant's apartment, not knowing if anyone else was there, they would have heard, and she would have expected them to have done something. (RR V – 178-179).

When Appellant was finished, Complainant went into the bathroom to call someone. (RR V – 161). She recalled saying that she was "basically raped." (RR V – 163). She explained that what she meant by this was that she was actually raped. (RR V – 163).

Complainant described the escalation of Appellant's advances, culminating

painful to touch. (RR VIII – 54). There was bleeding of the hymen, the labia minora area was very red and painful to touch. (RR VIII – 55). There was also bleeding at and right above the nine o' clock position and of the posterior fourchette. (RR VIII – 55). There was also a yellow granulation tissue, similar to a scab, indicating that the tissue was undergoing a healing process, consistent with an injury that had occurred earlier that morning. (RR VIII – 55-56).

Dr. William Lee Carter, a psychologist, testified to dynamics of sexual assault. (RR VIII – 87). He had not evaluated either Appellant or Complainant. (RR VIII – 91). His review of the case was consistent with being an opportunistic sex assault. (RR VIII – 99). Dr. Carter viewed Complainant's statement that "I got raped, basically," to mean that she was saying, in a word, that it was rape. (RR VIII – 108).

Appellant re-called Complainant in his case-in-chief. (RR VIII – 124). On cross-examination she sponsored State's Exhibit 10, an email she had written to Bethany McCraw, as a prior consistent statement. (RR XI – 20). The email supported Complainant's testimony that she never told McCraw

that she and Appellant ever kissed, or that Appellant had tried to have oral sex with her. (RR XI – 22).

Appellant called Peni Tagive. (RR XI – 35). Tagive had seen Complainant at the apartment early one morning, and assumed that she had been sleeping in Appellant's room. (RR XI – 45).

Tagive testified that on the night of the offense, he heard Appellant's voice and a female voice, passing through the living room. (RR XI – 51-52). He believed he would have heard someone screaming in Appellant's room, but he did not hear any screaming, resisting or wrestling the rest of the night. (RR XI – 53-54).

The State impeached Tagive's testimony, showing prior inconsistent statements as to the timeline of events and Tagive's phone records showing that he was in different parts of town making calls at the time he claimed to be at the apartment. (RR XI – 58-61).

Appellant called Bethany McCraw regarding her investigative role in the case. (RR XI – 82-83). She was questioned regarding statements made reflecting prior consensual sexual activity. (RR XI – 83-86). At one point, the Complainant had made reflecting prior consensual sexual activity. (RR XI State objected and the court gave an instruction to disregard McCraw's responses,

– 83-86). At one point, the State objected and the court gave an instruction to disregard McCraw's responses, "as it's not true, and it's not part of her notes…." (RR XI – 85). On cross, the State reiterated with McCraw that nowhere in her notes did it appear that Complainant reported having oral sex with Appellant. (RR XI – 86-88). McCraw also agreed that in Complainant's email, she did not say anything about oral sex. (RR XI – 88). Rather, she wrote, "He tried to kiss me and he tried to touch me in certain places but I brushed him off." (RR XI – 88).

Appellant claimed that the sex was consensual, and that he had had prior sexual relations with Complainant. (RR XI – 92-93). Appellant testified that about a week after they met, he and Complainant had "oral sex." (RR XI – 95). Complainant had stayed the night at his apartment on this occasion and another occasion. (RR XI – 96). Describing the prior encounter, Appellant testified that they had kissed, they had taken off their clothes, and "I sucked on her breasts, I fingered her, and she, uh, masturbated me." (RR XI – 97). This was what Appellant meant by "oral sex." (RR XI – 97). Regarding the charged offense, Appellant testified that Complainant never said "No," nor did she ever scream. (RR XI – 110). On cross, Appellant was impeached with his prior statement that Complainant "was very vocally into it." (RR XI – 152).

ARGUMENT AND AUTHORITIES: ISSUE ONE

The court of appeals misapplied the standard of review for admission of evidence under Rule 412 and Rule 107 in a manner that so far departed from the accepted and usual course of judicial proceedings as to call for an exercise of the Court of Criminal Appeals' power of supervision.

ARGUMENT AND AUTHORITIES: ISSUE ONE

The court of appeals misapplied the standard of review for admission of evidence under Rule 412 and Rule 107 in a manner that so far departed from the accepted and usual course of judicial proceedings as to call for an exercise of the Court of Criminal Appeals' power of supervision.

Texas Rule of Evidence 412 is unlike other rules of evidence. Whereas the presumption throughout most of the rules of evidence is in favor of admission, the opposite is true with Rule 412. *See*, *Robisheaux v. State*, 483 S.W.3d 205, 223 (Tex. App.—Austin 2016, pet. ref'd). Because of the prejudice to the victim inherent in evidence of her sexual activity, this Court (along with the Supreme Court) crafted a framework designed to protect victims. In this case, the court of appeals ignored basic rules of evidentiary ruling review and misapplied the Rule 412 framework. As a result, the trial court was held to have abused discretion it was not called upon to exercise.

Texas Rule of Evidence 412 is unlike other rules of evidence. Whereas the presumption throughout most of the rules of evidence is in favor of admission, the opposite is true with Rule 412. *See, Robisheaux v. State*, 483 S.W. 3d 205, 223 (Tex. App. – Austin 2016, *pet. ref'd*). Because of the prejudice to the victim inherent in evidence of her sexual activity, this Court (along with the Supreme Court) crafted a framework designed to protect victims. In this case, the court of appeals ignored basic rules of evidentiary ruling review and misapplied the Rule 412 framework. As a result, the trial court was held to have abused discretion it was not called upon to exercise.

Complainant never said "No," nor did she ever scream. (RR XI – 110). On cross, Appellant was impeached with his prior statement that Complainant "was very vocally into it." (RR XI – 152).

PRAYER FOR RELIEF

WHEREFORE, the State of Texas prays that the Court of Criminal Appeals grant this Petition for Discretionary Review, reverse the court of appeals decision and remand the case so that the court of appeals can consider Appellant's remaining points of error.

the excluded evidence, any error did not influence the jury, or had but a slight effect. *See Johnson v. State*, 967 S.W.2d 410, 417 (Tex. Crim. App. 1998).

PRAYER FOR RELIEF

WHEREFORE, the State of Texas prays that the Court of Criminal Appeals grant this Petition for Discretionary Review, reverse the court of appeals' decision and remand the case to that court to consider Appellant's remaining points of error.

Respectfully submitted,

/s/ Sterling Harmon
STERLING HARMON
Chief Appellate
Assistant Criminal District Attorney
Bar I.D. No. 09019700
219 N. 6th Street Suite 200
Waco, Texas 76701
sterling.harmon@co.mclennan.tx.us
254/757-5084 (Telephone)
254/757-5021 (Fax)

CERTIFICATE OF SERVICE

The undersigned certifies that on this 20th day of April, 2017, the State's Petition for Discretionary Review was served electronically through the electronic filing manager or e-mail on the parties below.

/s/ Sterling Harmon
STERLING HARMON
Chief Appellate
Assistant Criminal District Attorney
Bar I.D. No. 09019700
219 N. 6th Street Suite 200
Waco, Texas 76701
sterling.harmon@co.mclennan.tx.us
254/757-5084 (Telephone)
254/757-5021 (Fax)

CERTIFICATE OF COMPLIANCE

The undersigned certifies that according to the Microsoft Word 2010 word count tool the applicable portion of this document contains 3,053 words.

Respectfully submitted,
/s/ Sterling Harmon
STERLING HARMON
Chief Appellate Assistant Criminal District Attorney
Bar I.D. No. 09019700
219 N. 6th Street Suite 200
Waco, Texas 76701
Sterling.Harmon@co.mclennan.tx.us
254/757-5084 (Telephone)
254/757-5021 (Fax)

CERTIFICATE OF COMPLIANCE

The undersigned certifies that according to the Microsoft Word 2010 word count tool the applicable portion of this document contains 3,053 words.

/s/ Sterling Harmon
STERLING HARMON

CERTIFICATE OF SERVICE

The undersigned certifies that on this 20th day of April, 2017, the State's Petition for Discretionary Review was served electronically through the electronic filing manager or e-mail on the parties below.

William A. Bratton, III
2828 Routh Street, Suite 675
Dallas, Texas 75201
bill@brattonlaw.com

/s/ Sterling Harmon
STERLING HARMON
Chief Appellate
Assistant Criminal District Attorney

Stacey M. Soule
State Prosecuting Attorney
P.O. Box 13046
Austin, Texas 78711
information@spa.texas.gov

CERTIFICATE OF SERVICE

The undersigned certifies that on this 20th day of April, 2017, the State's Petition for Discretionary Review was served electronically through the electronic filing manager or e-mail on the parties below.

/s/ Sterling Harmon
STERLING HARMON
Chief Appellate Assistant Criminal District Attorney

William A. Bratton, III
2828 Routh Street, Suite 675
Dallas, Texas 75201
bill@brattonlaw.com

Stacey M. Soule
State Prosecuting Attorney
P.O. Box 13046
Austin, Texas 78711
information@spa.texas.gov

/s/ Sterling Harmon
Sterling Harmon
Chief Appellate
Assistant Criminal District Attorney